

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Filed: _____

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Index No.:

Kenyatta Ellis,

Plaintiff,

Plaintiff designates
Queens County as the
place of trial

- against-

The City Of New York, Michael Matias,
and John Does #1-3

Defendants.

The basis of venue is:
The situs of occurrence

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, to, if the complaint is not served with the summons, to serve a notice of appearance, on the plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
June 6, 2020

The nature of this action is for violation of Plaintiff's Civil and Constitutional Rights.
The relief sought is monetary damages.

LIAKAS LAW, P.C.



BY: Nicholas Mindicino, ESQ.

Attorney for Plaintiff

65 Broadway, 13th Floor
New York, N.Y. 10006
(212) 937-7765

If you fail to respond, judgment will be entered against you by default, with interest from date of incident.

Defendants:

City of New York
Office of the Corporation Counsel
100 Church Street
New York, New York 10007

Michael Matias
NYPD 113th Precinct
167-02 Baisley Blvd
Jamaica, NY 11434

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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Kenyatta Ellis,

Plaintiff,

- against-

VERIFIED COMPLAINT

The City Of New York, Michael Matias,
and John Does #1-3

Defendants.
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Plaintiff, by his attorneys, LIAKAS LAW, P.C., as and for this Complaint, alleges as follows:

Preliminary Statement

1. This is a civil rights action in which plaintiff seeks relief through the laws of the United States and the State of New York for the violation of his right to be Free of Unreasonable Search and Seizure under the United States and the New York State Constitutions.
2. The claim arises from an October 19, 2019 incident in which Officers of the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiff to false arrest.
3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper

JURISDICTION & VENUE

4. Within 90 days of the incidents alleged in this complaint, Plaintiff served upon Defendant, City of New York, a Notice of Claim setting forth the name and post office address of Plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose, and the items of damages or injuries claimed.

5. More than 30 days have elapsed since Plaintiff's Notice of Claim was served on Defendant.
6. Venue is proper in the Supreme Court of the State of New York, Queens County, because the acts in question occurred in the State of New York, Queens County, and the City of New York is subject to personal jurisdiction in the Supreme Court of the State of New York, Queens County.

PARTIES

7. Plaintiff, Kenyatta Ellis, at time of the incident described herein was a resident of the State of New York, Kings County.
8. The City of New York (or "the City") is a municipal corporation organized under the laws of the State of New York. At all times relevant hereto, Defendant City, acting through the New York Police Department (or "NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all relevant times, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
9. NYPD Officer Michael Matias and John Does #1-3 were at all relevant times police officers of the NYPD, and as such were acting in the capacity of agent, servant and employee of the City of New York. On information and belief, defendants Matias and John Does #1-3 were involved in the illegal arrest and prosecution of plaintiff and/or failed to intervene in the actions of their fellow officers. Defendants Matias and John Does #1-3 are sued in their individual capacities.

10. John Does #1-3 are individual police officers involved in the arrest and prosecution of Plaintiff whose names are not presently in Plaintiff's possession.

FACTUAL HISTORY

11. In the early morning hours of October 19, 2019 Plaintiff was a passenger in a parked car.
12. Plaintiff was in the parking lot outside the Walgreens store located at 127-4 Guy R. Brewer Blvd in Queens New York.
13. At approximately 3:00 am, NYPD Officers including defendants Matias and John Doe #1-3 approached the vehicle in which Plaintiff was a passenger.
14. Plaintiff was ordered to exit the vehicle.
15. Plaintiff was arrested by defendant officers.
16. Plaintiff was brought to the NYPD 113th Precinct, then to Central Booking at the Queens County Criminal Court for arraignment.
17. Eventually Plaintiff was released without charges after the Queens County District Attorney declined to prosecute Plaintiff.
18. At all times herein, the defendants lacked probable cause to believe Plaintiff had committed any crime.
19. Plaintiff was never charged with any offense related to this incident.

DAMAGES

20. As a direct and proximate result of the acts of defendants, Plaintiff suffered the following injuries and damages:
- a. Violation of his Federal and New York State Constitutional right to Due Process of Law;
 - b. Violation of his Federal and New York State Constitutional right to be free from

unreasonable searches and seizures;

c. Loss of Liberty;

d. Emotional distress, including fear, embarrassment, depression, and anxiety.

FIRST CAUSE OF ACTION

(False Arrest Under New York State Law)

21. The above paragraphs are here incorporated by reference.
22. Defendants subjected plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
23. Defendants intended to confine plaintiff and in fact confined him.
24. Plaintiff was conscious of the confinement and did not consent to it.
25. The confinement was not privileged.
26. Plaintiff was damaged by his wrongful imprisonment.

SECOND CAUSE OF ACTION

(Respondeat Superior)

27. The above paragraphs are here incorporated by reference.
28. The defendants' tortious acts were undertaken within the scope of their employment by Defendant City of New York and in furtherance of the Defendant City of New York's interest.
29. As a result of defendants' tortious conduct in the course of their employment and in furtherance of the business of Defendant City of New York, Plaintiff was damaged.
30. The City of New York is liable for the tortious acts of its employees by reason of respondeat superior.

THIRD CAUSE OF ACTION
(42 U.S.C. §1983)

31. The above paragraphs are here incorporated by reference.
32. Defendants have deprived Plaintiff of his civil, constitutional and statutory rights under color of law and have conspired to deprive him of such rights and are liable to Plaintiff under 42 USC § 1983.
33. Defendants' conduct deprived Plaintiff of his right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution.
34. Defendants' conduct deprived Plaintiff of his right to due process of law, pursuant to the Fourteenth Amendment to the United States Constitution.
35. Defendants falsely arrested plaintiff without probable cause to believe he had committed a crime, in violation of the Fourth and Fourteenth Amendments to the United States Constitution.
36. Plaintiff has been damaged as a result of defendants' wrongful acts.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants as follows:

- (A) compensatory damages in an amount to be determined at trial for each of Plaintiff's Causes of Action;
- (B) punitive damages in an amount to be determined at trial;
- (C) an order awarding Plaintiff reasonable attorneys' fees and costs;
- (D) such other further relief as the Court may deem just and proper.

Dated: New York, New York
January 6, 2021

Yours, etc.
LIAKAS LAW, P.C.

By: 

Nicholas Mindicino, ESQ.
Attorneys for Plaintiff
65 Broadway, 13th Floor
New York, New York 10006
(212) 937-7765

STATE OF NEW YORK)
) ss
COUNTY OF NEW YORK)

I, the undersigned, an attorney admitted to practice in the courts of New York State, state under penalty of perjury that I am one of the attorneys for Plaintiff in the within action; I have read the foregoing SUMMONS AND VERIFIED COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true. The reason this verification is made by me and not by my client, is that my client are not presently in the County where I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are the materials in my file and the investigations conducted by my office.

Dated: New York, New York
January 6, 2021

A handwritten signature in blue ink, appearing to read "Nicholas Mindicino", written over a horizontal line.

NICHOLAS MINDICINO, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Kenyatta Ellis,

Plaintiff,

- against-

The City Of New York, Michael Matias,
and John Does #1-3

Defendants

LIAKAS LAW, P.C.
Attorneys for Plaintiff(s)
65 Broadway - 13th Floor
New York, New York 10006
212-937-7765

SUMMONS and VERIFIED COMPLAINT

STATE OF NEW YORK, COUNTY OF NEW YORK, SS:

Nicholas Mindicino, the undersigned, an attorney admitted to practice in the Courts of New York State, affirms the following:

I further certify that my signature below acts as a "certification" for the documents attached hereto, in compliance with section 130-1.1-a of the Rules of the Chief Administrator (22 NYCRR).

Dated: New York, New York
June 6, 2020


Nicholas Mindicino, ESQ.

PLEASE TAKE NOTICE

- () that the within is a (certified) true copy of a Notice of _____ entered in the Office of the clerk of the within Entry named Court on _____
- () that an Order of which the within is a true copy will be presented for Notice of settlement to the Hon. _____ one of the Judges of the Settlement within named Court, on _____, at _____
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